

Form 9: Background Check Disclosure and Authorization

DRAFT FOR ATTORNEY REVIEW. NOT A FINAL FORM. NOT LEGAL ADVICE.

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Adult agreement. Not a guardian consent form and not governed by COPPA.

Formatting requirement: under the federal Fair Credit Reporting Act, the disclosure in section 1 must be a standalone document, clear and conspicuous, and must not contain a liability release or extraneous material. In production, section 1 is presented and signed on its own. Sections 2 and following are separate.

Section 1: FCRA Disclosure (standalone)

CurioLab may obtain one or more consumer reports about you, including a background check, from a consumer reporting agency for the purpose of evaluating you for a volunteer, mentor, or staff role, and may obtain such reports on a recurring basis during your engagement.

& I have read this disclosure.

Name: _____ Signature: _____ Date: _____

Section 2: Authorization

& I authorize CurioLab to obtain the consumer report(s) described in the standalone disclosure above.

Name: _____ Signature: _____ Date: _____

Section 3: Scope and your rights

- The report may include criminal history, sex-offender registry results, and identity verification, as permitted by law and appropriate to a role involving access to minors.
- If CurioLab considers taking adverse action based in whole or in part on a report, CurioLab will first provide you a copy of the report and a summary of your rights, and give you an opportunity to respond, before making a final decision.
- If CurioLab takes final adverse action, it will notify you and identify the reporting agency.
- You may dispute the accuracy of a report with the reporting agency.

Section 4: Ohio youth-serving overlay (for counsel)

If CurioLab is classified as an institution or association under Ohio Revised Code Chapter 5103, additional screening (including a national sex-offender-public-website search and a child-welfare summary report) may be required before engaging anyone with access to children. Classification is reserved for counsel.

Annex (for CurioLab / counsel)

- Type: adult FCRA authorization; no COPPA analysis.
- Structure: section 1 disclosure must remain standalone; no waiver or extra acknowledgment inside it.
- Adverse action: follow FCRA pre-adverse and adverse sequence in order.
- Retention: authorization and decision audit trail per employment/claims policy; raw reports restricted to need-to-know.
- Open questions: whether the chosen vendor furnishes an FCRA consumer report; R.C. Chapter

5103 classification and resulting mandates; any local fair-chance screening rules.

- Authorities: FCRA; R.C. 5103.0310.